



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MAY 19, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	S. B. Member
Hon. Luis Lee E. Espeña, Jr.	S. B. Member
Hon. Alice D. Emano	S. B. Member
Hon. Juan D. Ebid	S. B. Member
Hon. Albert D. Destura	S. B. Member
Hon. Joseph H. Yap, Jr.	S. B. Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ABSENT:

None

RESOLUTION NO. 077-2025

Introduced by Hon. Albert Destura

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A DEED OF DONATION WITH JUDY Y. LUSTESTICA, ET. AL. FOR THE DONATION OF A PARCEL OF LAND DENOMINATED AS SURVEY/ LOT NO. 178 PT (178-F) SITUATED IN BRGY. MANINGCAY DE ORO, THIS MUNICIPALITY, IN FAVOR OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in receipt of the Deed of Donation of a Portion of Parcel of Land duly endorsed by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, the Yap siblings, namely, Judy Y. Lustestica married to Alberto T. Lustestica; Pureza Y. Borom married to Thomas Borom; Jennifer Y. Domasig married to Eduardo D. Domasig; Joseph H. Yap III married to Marilyn D. Yap; Joni Y. Defeo, widow, all of legal age, Filipinos, and residents of Prieto Diaz, Sorsogon, Philippines, and Jane Y. Diño, Canadian Citizen and divorced, desire to donate a certain parcel of land in favor of the municipality of Prieto Diaz, Sorsogon;

WHEREAS, the said parcel of land is identified as Survey/ Lot No. 178 Pt (178-F) situated in Brgy. Maningcay De Oro, containing an area of ONE HUNDRED SIXTY-ONE

SQUARE METERS (161 sqm) only, bounded on the North by Frivaldo St.; on the East by Lot No. 178 PT.; on the West by Lot No. 178 PT.; and on the South by Lot No. 178 PT”;

WHEREAS, the Sangguniang Bayan understands that the said piece of land is purposely donated as a “right of way” to the property purchased from the donors, intended for the proposed transport terminal of the municipality;

WHEREAS, the donation of said property is for the best interest of the municipality and its constituents;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Antonio Emano, Jr.;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Deed of Donation with Judy Y. Lustestica, et. al. for the donation of a parcel of land denominated as Survey/ Lot No. 178 PT (178-F) situated in Brgy. Maningcay De Oro, this municipality, in favor of the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Municipal Mayor, Hon. Romeo D. Domasian; copy furnished Ms. Norma S. Emata, Municipal Assessor; Ms. Gemma Ferrer, Municipal Assessor; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

DEED OF DONATION OF A PORTION OF PARCEL OF LAND

KNOW ALL MEN BY THESE PRESENTS:

This Deed of Donation, made and executed this _____ day of _____ 2025 in the Municipality of Prieto Diaz, Sorsogon, Philippines, by and between:

JUDY Y. LUSTESTICA married to Alberto T. Lustestica, **PUREZA Y. BOROM** married to Thomas Borom, duly represented by Jocelyn Y. Lelis, **JENNIFER Y. DOMASIG** married to Eduardo D. Domasig, **JOSEPH H. YAP III** married to Marilyn D. Yap, **JONI Y. DEFEO**, widow, all of legal age, Filipinos, and residents of Prieto Diaz, Sorsogon, Philippines, and **JANE Y. DIÑO**, Canadian Citizen and divorced, duly represented by Jocelyn Y. Lelis, hereinafter referred to as the **DONOR**;

--- IN FAVOR OF ---

The Local Government Unit of **Prieto Diaz, Sorsogon**, represented by the **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, hereinafter referred to as the **DONEE**;

WITNESSETH

THAT the DONOR is the owner in fee simple of a certain real property situated in Barangay Maningcay de Oro, Prieto Diaz, Sorsogon, more particularly described as follows;

Survey/Lot No. 178 PT.

"A portion of a parcel of land denominated as **Survey/Lot No. 178 PT., (178-F)**, situated in Maningcay de Oro, Prieto Diaz, Sorsogon, containing an area of **ONE HUNDRED SIXTY-ONE (161) square meters**. Bounded on the North by Frivaldo St.; on the East by Lot No. 178 PT.; on the West by Lot No. 178 PT.; and on the South by Lot No. 178 PT."

THAT for and in consideration of public welfare as provided under General Welfare Clause of the Local Government Code of 1991, said **DONOR** hereby freely and irrevocably donates, transfers, and conveys, unto said **DONEE**, its successors and assigns, the real property subject to the terms and conditions herein stated;

TERMS AND CONDITION:

1. ACCEPTANCE:

The **DONEE** hereby accepts the donation and expresses its sincere appreciation for the donation and the cooperation of the **DONOR**.

2. PURPOSE:

The donated property shall be utilized by the **DONEE** to widen the Road-Right-of-Way and to create greater access to the Integrated Terminal for the safety and convenience of the commuting public and of the people of the municipality of Prieto Diaz, Sorsogon.

3. OWNERSHIP:

Ownership of the property shall vest exclusively in the **DONEE** upon full acceptance of this deed.

4. UNPAID TAXES:

The DONOR will ensure that the DONEE is free from any unpaid property taxes.

5. GOVERNING LAW:

This Deed shall be governed by and construed in accordance with the laws of the Philippines.

6. ENTIRE AGREEMENT:

This Deed constitutes the entire understanding between the parties and supersedes all prior or contemporaneous communications and proposals, whether oral or written.

7. CONDITION:

That as a sign of goodwill, Vendee perpetually agreed not to put any fence within the perimeter of the property subject of this sale, except on the Western part and portion of the Southern part thereof. Likewise, the Vendee is perpetually prohibited from constructing/erecting a fence within the interior perimeter of the donated lot facing the LGU lot as shown in the sketch plan hereto attached which is made an integral part of this agreement.

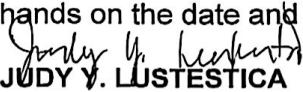
8. WARRANTY:

The DONOR warrants that they have the authority to make the donation.

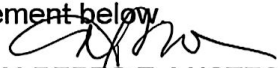
9. SEVERABILITY:

If any provision of this Deed is held to be invalid or unenforceable, such holding shall not affect any other provisions hereof, and all other provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the **DONOR** and the **DONEE** have hereunto set their hands on the date and place as indicated in the acknowledgement below.


JUDY Y. LUSTESTICA
Donor
OSCA ID No. 3737

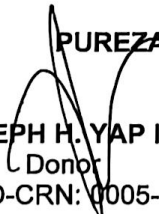

JONI Y. DEFEO
Donor
OSCA ID No. 4215


ALBERTO T. LUSTESTICA
Husband of Judy Lustestica

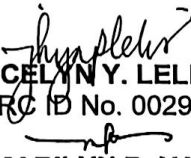

JENNIFER Y. DOMASIG
Donor
SSS ID No. 33-0944815-3

JANE Y. DIÑO, Represented by JOCELYN Y. LELIS
Donor
PRC ID No. 0029584


EDUARDO D. DOMASIG
Husband of Jennifer Y. Domasig


JOSEPH H. YAP III
Donor
UMID-CRN: 0005-0851298

PUREZA Y. BOROM & THOMAS L. BOROM, Rep. by JOCELYN Y. LELIS
PRC ID No. 0029584


MARILYN D. YAP
Wife of Joseph H. Yap III